

ORDER SHEET
IN THE LAHORE HIGH COURT, LAHORE
RAWALPINDI BENCH RAWALPINDI
JUDICIAL DEPARTMENT

Writ Petition No.1651 of 2016.

MOHAMMAD NAEEM

Versus

**DIRECTOR PUBLIC INSTRUCTION (SE), PUNJAB LAHORE and
another.**

S.No. of order/ proceeding	Date of order/ proceeding	Order with signature of Judge and that of parties or counsel, where necessary
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09.06.2016	Mr. Naseer Ahmed Tanoli, Advocate for the petitioner.
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By way of this constitutional petition, the petitioner seeks twofold relief, firstly setting-aside of order dated 27th of September, 1999, whereby he was removed from service or in the alternate direction to respondent to decide the pending departmental appeal.

2. Precisely, the facts necessary for adjudication of instant petition are that the petitioner was appointed as Junior Clerk in Education Department on 15th of June, 1995. In the meanwhile, he was proceeded departmentally on account of multiple charges, including charge of physical assault upon a female colleague who moved a complaint to this effect. After departmental inquiry, major penalty of removal from service was imposed vide order dated 27th of September, 1999. It is the stance of the petitioner that he filed departmental appeal against the said order which has yet not been decided by the respondent No.1.

3. Learned counsel for the petitioner, while reiterating the factual resume submitted that order

imposing the major penalty of removal from service was illegal and unlawful. Learned counsel maintained that the respondent No.1 was bound to decide the departmental appeal and inaction on his part is clearly detrimental to the fundamental rights of the petitioner guaranteed under the Constitution.

4. After having heard learned counsel for the petitioner at some length, I have examined the available record.

5. It is an admitted fact that the petitioner is a civil servant and he was proceeded by the department on account of charges of misconduct and moral turpitude. The departmental proceedings culminated into removal from service through order dated 27th of September, 1999. Section 4 of The Punjab [Service] Tribunals Act, 1974 provides the remedy of appeal to a civil servant, aggrieved from any final order, whether original or appellate, made by the appellate authority in respect of any of the terms and conditions of his service. The same is reproduced below for ready reference and convenience:-

[4. Appeal to Tribunals.– (1) Any civil servant aggrieved by any final order, whether original or appellate, made by a departmental authority in respect of any of the terms and conditions of his service may, within thirty days of the communication of such order to him or within six months of the establishment of the appropriate Tribunal, whichever is latter prefer an appeal to the Tribunal–

Provided that–

(a) where an appeal, review or representation to a departmental authority is provided under the Punjab Civil Servants Act, 1974, or any rules against any such order no appeal shall lie to a Tribunal unless the aggrieved civil servant

has preferred an appeal or application for review or representation to such departmental authority and a period of ninety days has elapsed from the date on which such appeal, application or representation was so preferred;

(b) no appeal shall lie to a Tribunal against an order or decision of a departmental authority determining the fitness or otherwise of a person to be appointed to, or hold a particular post or to be promoted to a higher grade; and

(c) no appeal shall lie to a Tribunal against an order or decision of a departmental authority made at any time before the 1st July, 1969.

(2) Where the appeal is against an order or decision of a departmental authority imposing a departmental punishment or penalty on a civil servant, the appeal shall be preferred—

(a) in the case of a penalty of dismissal from service, removal from service, compulsory retirement or reduction to a lower post or time-scale or to a lower stage in a time-scale to a Tribunal referred to in sub-section (3) of section 3; and

(b) in any other case, to a Tribunal referred to in sub-section (7) of section 3 and where no such Tribunal is established, to a Tribunal established under sub-section (3) of that section.

Explanation— In this section “departmental authority” means any authority, other than a Tribunal which is competent to make an order in respect of any of the terms and conditions of civil servants.]

It is manifestly clear from the above that order of the departmental authority in respect of any of the terms and conditions of service of a civil servant can only be challenged by way of an appeal before the

Tribunal constituted under Section 3 of the Act, *ibid*, however, there are two pre-conditions for filing of such appeal as embodied in the above referred provision. As per proviso (a) of sub-section 1 of Section 4 of The Punjab [Service] Tribunals Act, 1974 where an appeal, review or representation to a departmental authority is provided under the Punjab Civil Servant Act, 1974 or any rules against order of the departmental authority, civil servant has to prefer such appeal, review or representation to such departmental authority and on expiry of ninety days period from the date on which such appeal, application or representation was so preferred, the civil servant can bring an appeal before Tribunal irrespective of the fact whether departmental authority has passed some order on such appeal or application for review or representation.

6. There is no cavil that the order dated 27th of September, 1999 was appealable in terms of Section 21 of The Punjab Civil Servants Act, 1974 and this was the reason that the petitioner filed departmental appeal challenging the order of dismissal before the departmental authority. As already observed that by virtue of Section 4 of The Punjab [Service] Tribunals Act, 1974 where an appeal, review or representation to a departmental authority is provided under the Punjab Civil Servants Act, 1974 or any rules against order of the departmental authority, civil servant has to prefer such appeal, review or representation to such departmental authority and on expiry of ninety days period from the date on which such appeal, application or representation was so preferred, the civil servant can bring an appeal before Tribunal. This Court in view of specific bar placed in Article 212 of The Constitution

of The Islamic Republic of Pakistan, 1973 cannot exercise or extend its Constitutional jurisdiction in oblivion of such impediment. Guidance in this respect can be sought from “**NATIONAL ASSEMBLY SECRETARIAT through Secretary versus MANZOOR AHMED and others**” (2015 SCMR 253). The relevant extract from the same is reproduced below:-

“8. We have heard the learned counsel for the parties and have perused the record. Admittedly, respondent No.1 is a Civil Servant and, therefore, he could not have approached the High Court under Article 199 of the Constitution for redressal of his grievance, which pertained to the terms and conditions of his Service in view of the Bar created under Article 212(2) of the Constitution. The High Court, therefore, was not competent to adjudicate the issue raised in the Writ Petition. The High Court has fallen in error while proceeding on the erroneous assumption that respondent No.1 had raised the issue of violation of the statutory Rules, therefore, it was competent to decide the issues. This was an incorrect approach of the learned High Court to entertain a Constitution Petition of a Civil Servant on the ground of the statutory violation. Such grievances of a Civil Servant fall within the domain of the Federal Service Tribunal as mandated by the Constitution.”

The same view was reiterated by the Hon’ble Apex Court in “**CIVIL REVIEW PETITION NO.193 OF 2013 ETC. C.R.P. NO.193 OF 2013 IN CONSTITUTIONAL PETITION NO.71 OF 2011 ALI AZHAR KHAN BALOCH and others versus PROVINCE OF SINDH and others**” (2015 SCMR 456).

7. The petitioner even on account of lack of jurisdiction and malafide cannot cross the hurdle of Article 212 of The Constitution of The Islamic Republic of Pakistan, 1973 in the light of principles laid down in the case of “**PEER MUHAMMAD versus GOVERNMENT OF BALOCHISTAN through Chief**

Secretary and others” (2007 SCMR 54). In this view of the matter, former prayer clause, whereby an order for setting aside the impugned order dated 27th of September, 1999 solicited is un-called for.

8. So far alternate relief in the form of direction to respondent No.1 to decide the pending appeal is concerned, it is observed that copy of appeal appended with the instant petition does not reflect that it was ever moved before respondent No.1 for its consideration. Leaving aside this aspect, a direction in terms of Article 199 (1)(a)(i) of The Constitution of Islamic Republic of Pakistan, 1973 can only be given to a person performing within the territorial jurisdiction of the Court, functions in connection with the affairs of the Federation, a Province or a local authority, to do anything he is required by law to do. Section 4 of The Punjab [Service] Tribunals Act, 1974 does not cast any such duty upon the respondent to decide the departmental appeal in all the eventualities. The petitioner even without passing of any formal order on the departmental appeal could file the service appeal after lapse of statutory period of 120 days before the Service Tribunal. As the impugned order was passed way back in year 1999, so it appears that the instant petition has only been filed in order to overcome the surmountable hurdle of limitation.

9. The Constitutional jurisdiction is a discretionary relief which cannot be exercised in order to frustrate the ends of justice or to thwart the implication of law. There is no cavil that term ‘laches’ cannot be equated with the ‘limitation’ but Courts always stress upon litigants to knock the door with promptitude and at least within reasonable time. The petitioner has failed

to disclose any sufficient cause for such an inordinate delay while approaching this Court. In the case of **“PAKISTAN INTERNATIONAL AIRLINE CORPORATION and others versus TANWEER-UR-REHMAN and others”** (PLD 2010 Supreme Court 676), the Hon’ble Supreme Court of Pakistan, while interpreting the term reasonable time for filing a constitutional petition held as under:-

“24. Now the next question for consideration is whether the High Court was right in holding that 90 days time, specified initially in Muhammad Mubeen-us-Salam’s case (supra) and then in Muhammad Idrees’ case (supra) would also be applicable in the instant case. In this behalf, we are of the considered view that the impugned judgment, on this point, as well, is not maintainable because the period so mentioned hereinabove for filing of petition was with regard to the cases which stood abated in pursuance of the judgment in Muhammad Mubeen-us-Salam’s case (supra) as well as in Muhammad Idrees’s case (supra). But as far as the rule laid down in these judgments is concerned, it would not be applicable to an ordinary person filing petition by invoking jurisdiction of the High Court under Article 199 of the Constitution and he has to approach the Court within the reasonable time. Although, no definition of the expression ‘reasonable time’ is available in any instrument of law, however, the Courts have interpreted it to be 90 days. Reference in this behalf can be made to *Manager, Jammu & Kashmir State Property v. Khuda Yar* (PLD 1975 SC 678).

The Hon’ble Apex Court also reiterated the said principles in the case of **“CIVIL AVIATION AUTHORITY through Director General and 3 others versus Mir ZULFIQAR ALI and another”** (2016 SCMR 183) and **“Dr. MUHAMMAD TAHIR-UL-QADRI versus FEDERATION OF PAKISTAN through**

Secretary M/o Law, Islamabad and others” (PLD 2013 Supreme Court 413).

10. For the foregoing reasons, the instant petition is thus badly suffers from laches and is misconceived, consequently the same is hereby **dismissed in limine**.

(MIRZA VIQAS RAUF)
JUDGE

APPROVED FOR REPORTING.

Mahtab